

**GENERAL INFORMATION:**

Country name: Mongolia

Organization or entity responsible for the preparation of the report: Ministry of Education, Culture, Science and Sports

**I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**

**1. Ratification of the Convention<sup>1</sup>**

**Is your country a State Party to the Convention?**

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

*Describe:*

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol<sup>2</sup> instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☒ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

**In case your country is a State Party to the Convention:**

- Is the Convention directly applicable in your country's domestic law following its ratification?

☒ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

*This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.*

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☒ No

*If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.*

**In case your country is not a State Party to the Convention:**

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☒ No

*If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.*

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

*Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.*

## II. Information on the implementation of the Convention or Recommendation

### 1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

*Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.*

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.<sup>3</sup>*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)<sup>4</sup> (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☐ Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

<sup>3</sup> Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

<sup>4</sup> See: Article/Paragraph 1(1).

There is no discrimination to locals and foreigners who want to obtain education or/and enrol at Mongolian educational institutions.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

*This notably is covered under SDG target 4.1 and partly target 4.b<sup>5</sup>*

The following laws, regulations and standards aim to demolish inequality and discrimination in all levels and types of education:

-Law on Education amendment 2016,

-State policy on Education 2015,

Law on Children's Right,

-Law on Child Protection,

-Law on Domestic Violence

-The Basic Standards on Dormitory "MNS6781:2019

-The Mon-Braille letter Standard MNS 6800:2019

In 2019, the Government of Mongolia received an investment of 489 billion tugrik for Secondary Education sector, an increase of 131.1% compared to 2017.

For the first time, the multiple-shift (three-shift) schooling has been terminated in 2020. This new change allows an equal opportunity to participate and obtain education to all students of secondary schools, including those in rural and remote areas.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

<sup>5</sup> Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

- |                                                                                                                                                                    |                                                                                                   |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Providing financial incentives and fellowships                                                                                 | <input checked="" type="checkbox"/> Providing auxiliary assistance                                |
| <input checked="" type="checkbox"/> Providing positive or affirmative action measures                                                                              | <input checked="" type="checkbox"/> Adapting education infrastructure                             |
| <input checked="" type="checkbox"/> Ensuring inclusion in mainstream schools for all learners                                                                      | <input checked="" type="checkbox"/> Adapting curricula and methods                                |
| <input checked="" type="checkbox"/> Training teachers on inclusive education                                                                                       | <input type="checkbox"/> Providing language classes to newcomers (e.g. refugees)                  |
| <input checked="" type="checkbox"/> Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | <input checked="" type="checkbox"/> Eliminating administrative barriers to education <sup>6</sup> |
| <input checked="" type="checkbox"/> Providing re-entry programmes for young mothers                                                                                | <input checked="" type="checkbox"/> Providing flexible learning pathways                          |
| <input type="checkbox"/> Eliminating all barriers for pregnant girls or young mothers in education                                                                 | <input checked="" type="checkbox"/> Valuing diversity in schools                                  |
| <input type="checkbox"/> Other:                                                                                                                                    | <input type="checkbox"/> Combatting stereotyping and stigmatisation                               |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

The Secondary Education plan aims to increase the parent and public involvement in creating a safer educational environment for girls and women alike.

-Curricula to promote school safety, Curricula of Health

-Regulations on preventing female students from receiving external harassment in an educational environment and dormitories

-Introducing ethics curricula to secondary education system to particularly emphasize the enhancement of gender equality and girls' empowerment policy.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

*Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.*

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

<sup>6</sup> Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

Family Laws and Regulation (11 June 1999. Ulaanbaatar). Chapter Two: Basis of the Marriage relationship, formal requirements, procedures, and divorce. Article 6 (Formal requirements) – 6.1: **Mongolian** male and female citizens, aged 18 and over, or a Mongolian citizen with a foreign citizen or a stateless person can **marry** on ground of mutual consents in **Mongolia**.

## 2. Progress made with respect to implementing the right to education in the context of SDG 4

### 2.1 Pre-primary education

*Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation<sup>7</sup>. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.*

- Is compulsory and free of charge pre-primary education available in your country?

☒ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Enrolment age is 6 and duration time is 5 years.

☐ Pre-primary education is free of charge for all: Please provide the duration:

5 years

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Law of Mongolia on Education, Law on Pre-school Education

### 2.2 Universal primary and secondary education

*Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”*

#### **Primary education**

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

<sup>7</sup> Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

*In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.*

Primary education is compulsory and it is tuition- free. The enrolment age is 6 and the duration period is 5 years. There are few difficulties faced in primary education.

The followings are few examples of the challenges:

-Training primary teachers on a college or university level

-To equally improve reading, spelling, counting skills of primary school students

-To improve the quality of curricula of primary schools in remote and far regional areas; keeping a consistent level and quality of education that are given to students

The Government of Mongolia has been taking all possible legal actions to reform the curricula with the agenda to improve educators' pedagogical skills and to raise further social responsibility. Moreover, the legal reformations aim to create a better school environment for primary school students. In order to do so, increased the budget of Educational sector that particularly focuses on primary education.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

*For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).*

*Law on Education, Law on Primary and Secondary Education*

The Secondary Education in Mongolia includes compulsory elementary education (primary and secondary) and upper secondary education. The public secondary educational institutions are free of tuition. In the Article 6 of Law on Education indicates that public schools are free of charge and do not require additional fees.

The statistics show that in the academic year of 2019-2020 there has been 158 private schools operating in Mongolia, of which 55 are primary schools. The government does not direct or control the tuition rates of private schools. The fees are set and determined based on curricula and specializations of a particular school. There are 5262 teachers are working for private schools in Mongolia.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

## **Secondary education**

*In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.*

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

*Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).*

*Law on Education, Primary and Secondary Education Law*

The public secondary schools in Mongolia are free and do not need any additional fees. (Article 6, Law on Education) However, private institutions require a tuition fee and other extra costs.

It is essential to engage students and keep their school attendance consistent as schools play a crucial role in child development. Educational institutions prepare children and young adults to be a member of a society, helping them to function properly within the communities. Further, being in school allows children to learn about their culture and tradition and encourages them to choose the right path in life, including, choosing a proper profession for themselves.

As of 2019-2020, there are 158 private schools operating in Mongolia, of which 45 are Secondary schools. The government does not direct nor control the tuition rates of private schools. The fees depend on the curricula and specializations of the particular school. Currently, there are 5262 teachers employed by private schools in Mongolia.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

*In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.*

*The enrolment age is 12 and duration lasts for 7 years.*

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

*Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore*



*not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.*

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

Law on Labour, Civil Code of Mongolia

## 2.3 Higher education

*Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3<sup>8</sup>, and target 4.4<sup>9</sup>.*

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation<sup>10</sup> to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

*Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic,*

<sup>8</sup> Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

<sup>9</sup> Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

<sup>10</sup> See: Article/Paragraph 1(1).

*Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.*

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

*In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.*

The higher and professional education aims to introduce a standard-based quality control policy in the educational sector. This new regulated policy will create future professionals with skills and degrees that meet the international standards and requirements.

In the academic year of 2019-2020, there has been 148.4 thousand students enrolled in 95 universities, of which 82.9 thousand are enrolled in 21 state-owned universities, 65.3 thousand students enrolled in 71 private universities, and 190 students enrolled in 3 branches of foreign universities in Mongolia. In total, there are 11.3 thousand teachers and staff members, of which the 7.3 thousand are full time employees. In brief, the 55.8% of students are enrolled in state-owned universities, 44.0% are in private universities, and the 0.1% are enrolled in branches of foreign universities in Mongolia.

The gender ratio of higher school enrolment show that women are predominant, as the female-male ratio stands at 56.6% to 41.4%.

Further, the statistic of the academic year of 2019-2020 demonstrates that 148.448 students are enrolled in bachelor's, master's and doctoral degrees. The 80.3% (119.203) are of bachelor, 17.3% (25.733) of master's, and 2.3% (3392) are of doctoral degrees respectively.

## **2.4 Adult education and alternative learning**

*Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”*

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications

☐ Other:

- Please elaborate further on the measures taken:

We aim to strengthen the life-long learning policies and systems (legal, human, structural, organizational curriculums; environmental and financial systems). This will further serve as a foundation of establishment of a cross-sector cooperation at national level, allowing reformation towards lifelong learning systems to happen.

## 2.5 Quality education provision and learning environment

*Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.*

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

*To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.*

In 2019, 489 billion tugrik was invested in Secondary educational sector, an increase of 131.1 percent compared to 2017. As of 2019, teachers' salaries are increased by 29.6 percent in comparison to what was given to them in 2014. Starting 2020, there will no longer

be multiple-shifting (three-shift) schools. The long-term plan is to pursue a policy that will enable having an e-learning environment. This will diversify schools as an open educational center. Consequently, it will increase parental and community involvement in education and children's development. Further, overall, this will promote the quality of education up to an international standard.

## 2.6 Education personnel

*Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".*

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☒ Measures taken to increase women in leadership positions in education

☐ Other:

- Please briefly elaborate further on the measures taken:

Accrediting teacher training programs, improving the quality, increasing funding for teacher training system, regularly increasing educators' salaries in accordance with policies that cover, analyse and promote the well-beings of teachers. Some of the principles include market orientation, solving social problems, improving the health of pedagogues, housing them, awarding with appropriate promotions and merits, creating an environment that does not take external pressures, including receiving oppressions from political entities and bodies.

- Have there been instances of discrimination as regards the training for education personnel in your country?

- ☒ Yes: Has your government addressed this issue?
  - ☒ Yes
  - ☐ No
- ☐ No

## 2.7 Respect for human rights and fundamental freedoms

*Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.<sup>11</sup> Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.*

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

## 2.8 Private education

*Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.*

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

The government ensures equal variable costs per child in all non-government secondary schools and covers the lunch fees of elementary school students. During the academic year of 2019-2020, the lunch program covered the costs of 327 thousand primary school children, including in total of 803 public and private secondary schools. In addition, the state budget covers 1, 3 and 5 year(s) of basic in-service teacher training for all teachers, regardless of their form of ownership. The Teacher Development Institute organizes basic on-the-job training, combining online and classroom learning.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation<sup>12</sup> explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

Law on Education, Regulations of Operating Educational Institution

<sup>11</sup> Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

<sup>12</sup> See: Article/Paragraph 1(1).

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

## 2.9 Rights of national minorities

*Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.*

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☒ Curriculum is adapted to national minority needs
- ☒ Teachers are trained to adapt to national minority needs

☐ Other:

- Please provide a brief description of the provisions:

The Constitutional Law of Mongolia indicates the right to mother tongue education in the Articles 8.1 and 2. The laws on Mongolian language are presented in Articles 13.1 and 4; Law on Education in Article 5.1 and Law on

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

*Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.*

Since 2012, the educational research sector of Mongolians abroad and the Children of Minorities have been operating and conducting a research on Mongolian educational system at the Institute of Education and Training. Based on the research outcomes, they develop and refine the curricula and programs, and prepare textbooks and teaching materials.

In addition, all secondary schools in Bayan-Ulgii province provide primary education in the Kazakh language and secondary and higher education in Mongolian.

## 2.10 Rights of refugees and migrants

*The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states*

*to eliminate and prevent discrimination in education based notably on national origin.<sup>13</sup> In this context, a number of Member States that participated in the 9<sup>th</sup> Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,<sup>14</sup> demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.*

*Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.*

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

### **III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered**

#### **1. Challenges and obstacles**

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and

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<sup>13</sup> Articles/Paragraphs 1 and 3.

<sup>14</sup> Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

One of the urgent problems that need to be solved are educational inequality. That is, the pervasive inequities in access to education. There are several causes to that, including the inequality to wealth and living standards, as well as, the migration of citizens from rural and isolated areas to the capital.

The aforementioned challenges can be retaliated by developing an order of priority in educational sector. Also, by making education an instrument of social policy, by creating an intersectoral collaboration between sectors to facilitate an upgraded educational system, and by increasing parental involvement in the development of a better education for their children.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

It is important to raise and give incentives to educators and new pedagogical graduates working at schools and kindergartens in remote areas. As well, it is necessary to increase the coverage rate of primary education, to ameliorate basic educational system, to improve the learning environment in schools located in bags (subdistricts), soums and aimags, make e-learning more accessible, to upgrade the educational governance, to reduce the school dropout rates, and to create a lifelong educational system.

These issues are reflected in the main directions of economic and social development of Mongolia and in the strategic plan of "Vision 2050".

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

It is substantial to reduce the political influence on educational system and curricula. That includes, having less political engagements in all decision-making aspects of educational sector. Having less external influence will allow the educational sector to flourish in a non-corrupt and more goal and efficiency-oriented way. Being less dependent from government bodies will create more accountable and responsible staffs. It will also enable to use the budget efficiently and transparently. Further, it will increase the authority of educational institutions.

Our challenges also include improving cooperation between educational sector and other sectors. For instance, rapid introduction of electronic learning platforms and the reliability of information and statistics.

- ☐ Other:



1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

- Develop an order of priority in the educational sector;
- Become less dependent from politics;
- Develop a cross-sectoral partnerships – increase family and personal responsibility; increase the enrollment rate of primary and in general, secondary schools;
- Improve the learning environment of schools located in Bags, Soums and Aimags; adopt e-learning in education.
- Increase the authority of Educational institutions;
- Develop a lifelong education system;
- Work towards making the educational sector non-corrupt;
- Increase budget efficiency and make spending more transparent;
- Introduce and raise the awareness of e-learning in Education and create a reliable source of information and statistics.

## 2. Awareness-raising

*UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.*

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☒ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: